

Court No. - 1

Case :- WRIT - C No. - 41739 of 2019

Petitioner :- Kitab Shree @ Smt. Kitab Shree

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Shiv Nath Singh, Sumitra Singh

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Heard Sri Shiv Nath Singh, learned counsel for the petitioner, Sri Suman Kumar Yadav, learned counsel for the respondents, learned Standing Counsel for the State and perused the record.

By means of this writ petition under Article 226 of the Constitution of India, the petitioner has prayed for a writ of mandamus commanding the respondent No. 3 to provide Pre-paid Electric connection in the house of the petitioner in House/ Plot No.- 940A Hemant Bihar, Barra-2, Kanpur Nagar.

According to the pleadings, as have been raised in the present writ petition, the petitioner applied for a new pre-paid electricity connection. However, he submits, till date no action has been taken for grant of electricity connection to him.

Learned counsel for the petitioner has further drawn our attention to the relevant provisions as contained under Chapter IV of U.P. Electricity Supply Code, 2005.

We have gone through the relevant provisions as contained under Chapter IV, particularly clauses 4.1, 4.3 and 4.4 which cast obligation upon the licensee namely the respondents herein, to consider the application of the petitioner for pre-paid electricity connection and if otherwise there is no legal impediment, to ensure that electricity connection is granted speedily within four weeks.

We find no justification, therefore, for inaction on part of the respondents to linger on the matter and not to take any decision either to grant electricity connection or to refuse the same for the reasons to be accorded.

In such view of the matter, we are disposing of the writ petition with a direction to the respondent No.-3 to consider the application of the petitioner for grant of new pre-paid electricity connection and pass a reasoned and speaking order, either way,

positively within a period of four weeks from the date of production of certified copy of this order.

With the aforesaid observations and directions, the writ petition stands disposed of.

Order Date :- 17.12.2019

Atmesh

(Ajit Kumar,J.) (Ramesh Sinha,J.)